

		streamlined discovery processes to ensure that the information most relevant to a lemon law case is disclosed early in the litigation process <i>and without the need to argue costly discovery disputes before the court</i>”] [emphasis added].) In order “to ensure that attorneys faithfully adhere to these new discovery rules, the bill <i>proposes sanctions</i> on attorneys who violate the provisions of this bill.” The statute does not say anything about a party bringing a motion to compel production in order to enforce compliance with the statute. Rather, the remedy for non-compliance with the production of initial disclosures is monetary sanctions. (Code Civ. Proc., § 871.26, subd. (j)(4).) For “repeated noncompliance with subdivision (b), (c), or (d), a court may order evidentiary sanctions. (Code Civ. Proc., § 871.26, subd. (j)(4).) Second, Plaintiffs have not shown that the litany of documents that Defendant has purportedly failed to produce are encompassed by section 871.26, subdivisions (h)(6) through (h)(10), (h)(12), and (h)(13). Section 871.26 is generally limited to materials that are “reasonably related to the nonconformities pertaining to the motor vehicle.” Based on a reading of the FAC, it is not clear that Plaintiffs are alleging the “missing” materials are reasonably related to nonconformities in the subject vehicle that Defendant or its agents were unable to conform/repair. The only exception is the “Warranty Administration Manual,” which Defendant offers to produce “subject to the entry of a protective order.” (Opp’n at p. 1.) Plaintiffs are correct that section 871.26 does not require them to enter into a protective order. Nevertheless, monetary sanctions are only warranted if Defendant fails to show good cause. (Code Civ. Proc., § 871.26, subd. (j).) Given the sensitive nature of the manual, the Court finds there was good cause for Defendant to request a stipulation for protective order for the production of the manual. Aside from the lack of a statutory mandate, Plaintiffs have not given any reason why this request is unreasonable. The motion is denied in its entirety. Defendant shall give notice of the ruling.
6	Doe #1 P.M. vs. Roe 1 2022-01299916	Motion for Summary Judgment and/or Adjudication The Court grants Defendant The General Council of the Assemblies of God’s (“General Council) Motion for summary judgment, or alternatively summary adjudication of Plaintiff John Doe #1 P.M.’s First Amended Complaint (FAC).

Evidentiary Objections

The Court overrules objection nos. 1-16 and 18-19. The Court sustains objection no. 17.

Continuance

In opposition, Plaintiff's Counsel asks for a continuance of the hearing on this Motion to conduct the depositions of the person most qualified of Defendant Legacy Community Church and Defendant Assemblies of God Northern California and Nevada District Council. (West Decl., ¶¶5-15.) Plaintiff's Counsel testifies that despite diligence, this essential discovery remains outstanding through no fault of Plaintiff. (See eg. West Decl., ¶4.)

An application to continue a summary judgment motion to obtain necessary discovery must be made by a declaration or an affidavit filed in conjunction with a timely opposition to the motion, or by an ex parte motion at any time on or before the date on which the opposition to the motion is due. (CCP § 437c(h); *Cooksey v Alexakis* (2004) 123 Cal.App.4th 246, 255, 259 (ex parte application filed on hearing date is not timely).)

There is a split of authority whether the court has discretion to deny a continuance based on the party's lack of diligence in discovering facts earlier. A number of courts have held that, if the party seeking a continuance submits an affidavit demonstrating that facts essential to justify opposition may exist, the court's discretion to deny a continuance on this ground is "strictly limited." (*See, e.g., Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 398—"The issue of discovery diligence is not mentioned in section 437c, subdivision (h), which raises obvious doubts about its relevance"; *Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506, 519.)

But other courts have held that because the statute requires the party seeking a continuance to state why the discovery needed to oppose the motion could not have completed sooner, and also says the court "may make any other order as may be just," the court can consider diligence to deny relief. (*See Rodriguez v. Oto* (2013) 212 Cal.App.4th 1020, 1038, & fn. 7 (noting that "majority of courts have held that lack of diligence may be a ground for denying a request for a continuance") (internal quotes omitted); *Braganza v. Albertson's LLC* (2021) 67 Cal.App.5th 144, 151-157 (collecting cases on split)—party seeking continuance must show why discovery needed to oppose motion could not have been completed sooner, and moving party not required to show it would be prejudiced by continuance.)

Bahl v. Bank of America, supra, 89 Cal.App.4th at 398 is a 4/3 case. Thus, the threshold question presented by a section 437c(h) request is: Does the supporting affidavit show “that facts essential to justify opposition may exist but cannot, for reasons stated, then be presented”? (§ 437c(h).) If the affidavit makes such a showing, the statute requires the trial court to grant a continuance or deny the summary judgment motion. (§ 437c(h).)

But note, where a party's lack of diligence results in having insufficient information *to know* if facts essential to justify opposition may exist, and the party is therefore unable to provide the requisite affidavit under CCP § 437c(h), a continuance may be denied. (*See Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 398.)

Here, even if diligence were not considered, Plaintiff has already obtained a continuance of this Motion. This Motion was filed on 1/22/26 and set for hearing on 4/20/26. On 4/9/26, the parties stipulated and the Court ordered that the Motion be continued so Plaintiff could conduct necessary discovery to properly oppose the Motion. (ROA 236.) The continued the hearing for three months to July 20, 2026. (*Id.*)

A judge may deny a continuance when the judge has granted previous continuances to the party opposing summary judgment. (*Roth v Rhodes* (1994) 25 CA4th 530, 547 (CCP § 437c(h) does not provide for unlimited continuances).)

Having already provided a continuance to conduct deposition, the Court denies Plaintiff's request for a second continuance.

Legal Standard

“[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (*Ibid.*) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint.

(*FPI Development v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) The motion may not be granted or denied on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Merits

Plaintiff has five remaining claims against Defendant General Council: (1) Sexual Abuse of a Minor (First Cause of Action), (2) Intentional Infliction of Emotional Distress (Second Cause of Action), (3) Negligence (Fourth Cause of Action), (4) Negligent Supervision (Fifth Cause of Action), and (5) Battery (Seventh Cause of Action). All the claims are based on the alleged sexual abuse by “David.” (Separate Statement of Undisputed Fact 35; FAC, ¶ 5.)

The Court notes that Defendant’s Separate Statement makes the same repeated claims for 567 facts. Like Plaintiff, this Court refers to the first appearance of the claims for brevity.

Based on the FAC, these claims are brought against Defendants under a theory of respondeat superior/ ratification, or alternatively direct negligence.

Direct Negligence theory: Defendant has met its burden to show that it had no special relationship with Plaintiff and owed no duty of care and breached no duty of care.

According to Plaintiff’s discovery responses, Plaintiff alleges a sexual assault occurred by “David” while Plaintiff participated in this Church’s youth group “Royal Rangers.” “David” was allegedly a

leader in this Royal Rangers group. (SSUF 18.) Plaintiff did not tell anyone about the alleged abuse at the time. (SSUF 33.)

Defendant General Council had no relationship with Plaintiff. (SSUF 13-14; Kesler Decl., ¶¶ 24-25; *See Barenborg v. Sigma Alpha Epsilon Fraternity* (2019) 33 Cal.App.5th 70; *Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.) Plaintiff was not a member or attendee of Defendant General Council. Parishioners attend and/or become members of an individual church, not of the General Council. Defendant General Council had no control or oversight over Plaintiff. (*Id.*)

Plaintiff has not met his burden to show a triable issue of material fact. (*See Brown v. Ransweiler* (2009) 171 Cal.App.4th 516, 525-26 (issue of fact cannot be created by “speculation, conjecture, imagination or guess work,” and is not raised by “cryptic, broadly phrased, and conclusory assertions, or mere possibilities.”); *Horn v. Cushman & Wakefield W., Inc.* (1999) 72 Cal.App.4th 798, 805 (to defeat motion plaintiff must show specific facts and cannot rely on allegations in pleadings).)

Respondent Superior theory: Defendant has met its burden to show that it did not employ, supervise, or have control over “David” at Royal Rangers.

Defendant General Council has shown that it had no relationship with employees, staff, teachers and volunteers of the local church. The employees and staff members of local churches are not employed by Defendant General Council. (SSUF No. 17.) This “David” (the alleged wrongdoer) was never an employee, agent, officer or volunteer of Defendant General Council. (SSUF 25, 28.)

Defendant General Council is a non-profit, religious corporation located in Springfield, Missouri. It is a cooperative fellowship of churches and credentialed ministers that voluntarily affiliate with it. Unlike some religious organizations, it is not hierarchical. One of the basic religious tenets of Defendant General Council is that the local church is autonomous and sovereign and Defendant General Council is prohibited from interfering with the local church, as set forth in its Constitution and Bylaws. (SSUF 30; Kesler Decl., ¶¶ 12-15.)

The individual churches that are affiliated with Defendant General Council are self governing, sovereign, and autonomous. As stated in the Constitution and Bylaws: Each local assembly has the right of self-government under Jesus Christ, its living Head, ... The fact that a local assembly is affiliated in the association of a District Council or

The General Council of the Assemblies of God shall in no wise destroy its rights as above stated or interfere with its sovereignty. (See Kesler Decl., ¶ 12 and Exhibit 1, p. 104, Art. XII; SSUF 8.)

Defendant General Council has a division called Royal Rangers, which provides resources if a local church chooses to have such a program, and if the church wants to use such materials. If a church decides it has a Royal Rangers program, that is their program. There is no corporate or operational connection between Plaintiff's church's Royal Rangers program and Defendant General Council's Royal Rangers division. The local church – a separate, independent entity with its own Board, officers, employees and volunteers, decides whether to have a Royal Rangers program, and if so, staffs it, runs it, operates it as it deems fit. (Kesler Decl., ¶¶ 4, 15, 17-29; 7/25/25 Kesler Depo., at 10:12 11:25, 15:5-11, 16:11-17; 5/14/26 Kesler Depo., at 33:2-34:24, 37:4-15.)

Defendant General Council's religious beliefs about church governance, as reflected in its Constitutions and Bylaws (Exhibit 1), prohibit it from interfering with a local church's hiring and supervision of employees, staff, teachers and volunteers, including any Royal Rangers program the church might choose to have. (SSUF 22, 29-31. Kesler Decl., ¶¶ 15-20.)

Indeed, it is impossible for Defendant General Council to provide day-to-day oversight of the activities of the local churches, as there are over 7,300 churches in the United States that are affiliated members of Defendant General Council. (SSUF 9.) Those 7,300 churches have 2.5 million church members and adherents. (SSUF 11.) There are over 6,200 churches with a Royal Rangers program. (SSUF 19.)

Again, Defendant General Council is primarily a resource for curriculum and related materials made available to churches on various programs, including Royal Rangers. Each local church makes its own decisions regarding what programs it wants to have, and whether to utilize any of the materials Defendant General Council has available. The local church runs and operates its own programs, including who at the local church is involved in the programs. Defendant General Council has no involvement or oversight over the volunteers or staffing by the local church of the local church's programs, such as Royal Rangers. (SSUF 22, 29-31.)

Whether a local church decides to purchase any of it, or use any of it, or to what extent, is up to the local church. In addition, the material could be purchased by non affiliated churches. (Kesler Decl., ¶¶ 4, 19,

21; 5/14/26 Kesler Depo., pp. 33:2-34:24. See also Exh. G to West Decl.)

Plaintiff has not met his burden to show a triable issue of material fact.

Ratification theory: Defendant has met its burden to show that it did not ratify any of “David’s” conduct.

“ ‘As an alternate theory to respondeat superior, an employer may be liable for an employee's act where the employer either authorized the tortious act or subsequently ratified an originally unauthorized tort. [Citations.] The failure to discharge an employee who has committed misconduct may be evidence of ratification. [Citation.] The theory of ratification is generally applied where an employer fails to investigate or respond to charges that an employee committed an intentional tort, such as assault or battery. [Citations.] Whether an employer has ratified an employee's conduct is generally a factual question. [Citation.]’ [Citations.]” (*C.R. v. Tenet Healthcare Corp.* (2009) 169 Cal.App.4th 1094, 1110–1111.) “A principal may be liable when it ratifies an originally unauthorized tort. [Citations.] And generally, the ratification relates back to the time the tortious act occurred. [Citations.] As noted, ratification may occur when an employer learns of misconduct and fails to discharge an agent or employee. [Citations.]” (*Id.* at p. 1111; see also *Ratcliff v. The Roman Catholic Archbishop of Los Angeles* (2022) 79 Cal.App.5th 982, 1002.)

Ratification is not itself a tort, but a doctrine that holds the ratifying party liable for the tort committed by another party. It is the voluntary election by a party to adopt, as its own, an act purportedly done on its behalf by another, the effect of which is to treat the act as originally authorized by the ratifier. (*Lebrun v. CBS Television Studios, Inc.* (2021) 68 Cal.App.5th 199, 208–209.) Ratification is not an element of a claim; it is a choice to adopt someone's act as one's own. Evidence of the ratification may come in many forms, for example where an employer fails to terminate, investigate, or respond to charges that an employee has committed an intentional tort. (*Ratcliff v. The Roman Catholic Archbishop of Los Angeles* (2022) 79 Cal.App.5th 982, 1002–1003; see also *C.R. v. Tenet Healthcare Corp.* (2009) 169 Cal.App.4th 1094, 1110–1111.)

Here, Plaintiff alleges that “Defendants had actual knowledge that Perpetrator(s) had sexually harassed and abused minors.” (FAC, ¶ 38). Plaintiff further alleges that Defendants collectively “turned a blind eye and still allowed Perpetrator(s) to work for Defendants, and did nothing to prevent any further abuse from occurring.” (FAC, ¶ 38.)

		But Defendant General Council has shown that it had no notice of any wrongdoing or interaction or control over the alleged wrongdoer. The first notice Defendant General Council ever had of alleged abuse of Plaintiff was when it was served with the FAC in this case on September 16, 2024. Even the FAC did not identify the alleged wrongdoer. In written discovery responses in 2025, Plaintiff only referred to the wrongdoer as “David.” The undisputed facts show Defendant General Council had no knowledge or notice of any wrongdoing. (SSUF 33, 34.) Plaintiff has not met his burden to show a triable issue of material fact. Thus, the Motion is granted. Defendant is ordered to serve notice.
7	Farnum vs. Big Dental Group 2022-01282420	Motion – Other The motion by Plaintiff Andrew Joseph Farnum (“Plaintiff”) appears to be seeking an order compelling Defendants Bigdeli D.D.S. Inc. dba Big Dental Group and Foruzan Bigdeli, D.D.S. (collectively, “Defendants”) to serve further responses to Plaintiff’s three sets of special interrogatories, an order compelling Defendants to produce documents, monetary sanctions against Defendants and their attorney of record, an issues conference, reconsideration of a July 2023 Order by Judge De La Cruz, and leave to amend. Plaintiff’s caption describes the motion as a motion for an issues conference with motion to compel further responses to special interrogatories, motion to compel production of discovery documents, and motion for sanctions. (Motion, Page 1.) Plaintiff contends he is presenting this application to seek the following relief: 1) issues conference; 2) motion to compel further responses to special interrogatories; 3) motion compelling production of discovery documents; 4) motion for leave to amend; and 5) monetary sanctions. (Motion, Declaration of Application Notice, Lines 10-23.) In the supporting memorandum, Plaintiff also requests a writ of review of the 2023 <i>ex parte</i> motion to enforce contempt. (Motion, 5:18-19.)